

trustee than to a stranger (*f*). Thus, where a sum of money was given to three executors upon trust to distribute in charity at their discretion, and the executors assumed each the independent control of one-third, Lord Hardwicke said, "I am of opinion the executors could not divide the charity into three parts, and each executor nominate a third absolutely, because the determination of the property of *every* object was left by the testator to the direction of *all* the executors" (*g*).

14. Transfer of the trust estate does not transfer the power. — Of course if a trustee convey the estate, the mere transfer of the estate will not have the effect of carrying with it the trust or power to the grantee (*h*). And so if a [*258] trustee devise the estate, the *devisee cannot administer a discretionary trust unless the original settlement contemplated such an event, and by vesting the powers in the trustee and his assigns annexed the powers to the estate in the hands of the devisee (*a*).

15. Delegation distinguished from appointment of a proxy. — It must be noticed that the appointment of an *attorney* or *proxy* is not in all cases a *delegation* of the *trust*. When the trustee has resolved in his own mind in what manner to exercise his discretion, he cannot be said to delegate any part of the confidence if he merely execute the deed by attorney, or signify his will by proxy. Thus, in the case before cited (*b*) where the trust was to elect and present a proper clerk to a benefice, Lord Hardwicke had no doubt that so far as related to the mere act of presentation, the trustees, having themselves fixed upon the object, might have signed the presentation by proxy; "a trustee who had a legal estate might make an attorney to do legal acts."

(*f*) *Crewe v. Dicken*, 4 Ves. 97.

(*g*) *Attorney-General v. Gleg*, 1 Atk. 356.

(*h*) *Crewe v. Dicken*, 4 Ves. 97, see 100; *Doyley v. Attorney-General*, 2 Eq. Ca. Ab. 194; *Bradford v. Belfield*, 2 Sim. 264; *Cole v. Wade*, 16 Ves. 47, *per* Sir W. Grant; *Kingham*

v. Lee, 15 Sim. 400, *per* Sir L. Shadwell.

(*a*) *Re Burt's Estate*, 1 Drew. 319; and see *ante*, p. 230, 231; [but see *Osborne to Rowlett*, 13 Ch. D. 774.]

(*b*) *Attorney-General v. Scott*, 1 Ves. 413; and see *Ex parte Rigby*, 19 Ves. 403.